
DATED THIS

DAY OF

2025

AGREEMENT FOR SALE

BETWEEN

**ULTRA BEACH RESIDENCE LTD
(the “Vendor”)**

TO

**NAZLEEN AHMED ABDALLA
(the “Purchaser”)**

IN RESPECT OF

**TWO BEDROOM APARTMENT NO. 4B ON THE 4TH FLOOR BLOCK B,
ON LAND REFERENCE NO. 1138/I/MN**



DRAWN BY:

**ABDULLAHI YUSSUF & CO. ADVOCATES
RALLI HOUSE, 3RD FLOOR,
NYERERE AVENUE**

MOMBASA

Email: info@aycadvocates.com

AGREEMENT FOR SALE

THIS AGREEMENT FOR SALE is made the day of Two Thousand and Twenty-Five.

BETWEEN:

ULTRA BEACH RESIDENCE LTD a limited liability company incorporated in the Republic of Kenya of certificate of incorporation no. PVT-5JUZYQBE (hereinafter called "**the Vendor**" which expression shall include its successors in title and permitted assigns) of the one part;

AND

NAZLEEN AHMED ABDALLA a Kenyan Citizen and holder of a Kenyan Identification Card Number **33102237** (hereinafter called "**the Purchasers**" which expression shall where the context so admits include the Purchaser's personal representatives and permitted assigns) of the other part;

WHEREAS:

- A.** The Vendor is a beneficial and registered owner of all that piece of land situate in Mombasa County (formerly Mombasa District) containing by measurement nought decimal One One Four Three five seven (0.1143) of a hectare or thereabouts known as Land Reference Number 1138/I/MN.
- B.** The Vendor will develop the Land into high-end residential apartments comprising of One Hundred Twenty-Eight (128) apartment units of two (2) and three (3) bedrooms and 2 Penthouses with, car parks, driveways and other usual amenities (the "**Estate**") in accordance with the approved Building Plans which are available for inspection at the Developer's site offices.
- C.** The Vendor will sell and the Purchaser will purchase one (1) such apartment known as Apartment Number 4B on the 4TH floor (the "Apartment"), (as more particularly defined under Schedule 1 of this Agreement), comprised in a block of apartments known as Ultra Beach Residence which comprises part of the Estate and more particularly delineated on the sketch plan attached herewith and accordingly marked.
- D.** The transfer of the Apartment from the Vendor to the Purchaser is in consideration of the payment of the Purchase Price (hereinafter defined) and shall be by way of transfer under the provisions of the Sectional Properties Act, 2020 (the "Act").
- E.** The Purchaser upon the transfer of the Apartment will become a member of the Corporation in accordance with the Act which entity shall operate, administer, manage and provide services in the common areas within the Estate on behalf of the Vendor.

- F. The Vendor shall prior to successful registration of the Corporation, have the right to bill and collect all the Service Charge (hereinafter defined) in the Estate and the Purchaser shall be bound to pay the Service Charge in accordance to the terms of this Agreement.
- G. The Purchaser shall be bound by the Sectional Properties Regulations, 2021 and the rules set by the Corporation from time to time regarding the management of the common areas in the Estate (hereinafter defined).

NOW THIS AGREEMENT WITNESSETH as follows:

1. DEFINITIONS AND INTERPRETATIONS

1.1 **Definitions** In this Agreement, unless the context otherwise requires, the following expressions shall have the following meanings: -

- 1.1.1 **"Agreement"** means this present Agreement for Sale of the Apartment, including its recitals, schedules and annexures and any other documents that may be expressly incorporated by reference;
- 1.1.2 **"Architect"** means a person holding a certificate of registration to practice architecture in Kenya under the authority of the Architects and Quantity Surveyors Act, Chapter 525 of the Laws of Kenya.
- 1.1.3 **"Balance"** means the sum of **Kenya Shillings Six Million (Kshs. 6,000,000/-)** exclusive of all taxes, to be paid by the Purchaser to the Vendor in accordance with this Agreement;
- 1.1.4 **"Board"** means the board of directors of the Corporation;
- 1.1.5 **"Buildings"** means the buildings and improvements constructed and erected by the Vendor and/or the developer on the Land in accordance with the Building Plans;
- 1.1.6 **"Building Plans"** shall mean detailed architectural layout and floor plans, landscape architecture plans, and any engineering drawings of proposed improvements providing detailed layout and floor plans, elevations, specifications and uses; landscape plans and specifications prepared according to the requirements of, and submitted in the format required by the relevant County Government and/or local authority.
- 1.1.7 **"Business Day"** means a day (other than a Saturday, Sunday or gazetted public holiday in Kenya) on which banks and financial institutions are normally open for the conduct of banking business in Kenya;
- 1.1.8 **"Competent Authority"** means any Government Entity whether at the

National or County level, having statutory or regulatory competence to promulgate rules and regulations having the force of law touching and concerning the Land or the Estate and the transactions and matters contemplated in this Agreement and “**Competent Authority**” shall be construed accordingly. For purposes of this clause, “**Governmental Entity**” means any national, state, relevant county authority, relevant county agencies, state corporations and other bodies, (including any sub-division, court, administrative agency, commission or other authority thereof) exercising any regulatory, taxing, importing or quasi-governmental authority;

- 1.1.9 “**Completion**” means the completion of the sale and purchase of the Apartment as provided in this Agreement;
- 1.1.10 “**Completion Date**” means twenty-one (21) days from the date of issuance of the certificate of practical completion from the project Architect and the certificate of occupation by the County Government of Mombasa or such other date as the Parties shall otherwise agree in writing;
- 1.1.11 “**Completion Documents**” means the documents listed in Clause 8.2 below;
- 1.1.12 “**Corporation**” means the body corporate incorporated in accordance with Section 17 of the Sectional Properties Act, 2020;
- 1.1.13 “**Deposit**” means the sum of **Kenya Shillings One Million Only (Kshs. 1,000,000/-)** exclusive of all taxes, paid by the Purchaser to the Vendor, (vendor acknowledges receipt), in accordance with this Agreement;
- 1.1.14 “**Estate**” means all the infrastructure, amenities, buildings, and improvements constructed on the Land inclusive of the Apartment in accordance with the Building Plans;
- 1.1.15 “**Land Registry**” means the Land Titles Registry, Mombasa;
- 1.1.16 “**LSK Conditions**” means the Law Society of Kenya Conditions of Sale (2015 Edition);
- 1.1.17 “**Purchase Price**” means the sum of **Kenya Shillings Seven Million (Kshs. 7,000,000/-)** exclusive of all taxes, to be paid by the Purchaser to the Vendor in accordance with this Agreement;
- 1.1.18 “**Party**” means either the Vendor or the Purchaser as the context may be;

- 1.1.19 **"Rules"** means such rules which shall be issued or promulgated from time to time by the Corporation and in accordance with the provisions of the Act relating to any aspect of Ultra-Modern Homes Limited;
- 1.1.20 **"Sectional Plan"** means a geo-referenced plan of units prepared by a surveyor and approved by the statutory body responsible for survey of land;
- 1.1.21 **"Service Charge"** means an amount set by the Corporation from time to time and agreed upon by the members. The initial service charge payable on the Service Charge Commencement Date shall be **Ksh. 4,500** per month, payable annually in advance;
- 1.1.22 **"Service Charge Commencement Date"** means the Completion Date of the project;
- 1.1.23 **"Service Charge Deposit"** means the sum of **Kshs. 13,500** being the security deposit payable by the Purchaser with respect to Service Charge to be paid on or before the Completion Date.
- 1.1.24 **"Transfer"** means the instruments of transfer of leasehold interest in respect of the Apartment from the Vendor to the Purchaser;
- 1.1.25 **"Units"** mean the apartments to be constructed and erected on the Estate on the Land in accordance with or substantially in accordance with the approved Building Plans.
- 1.1.26 **"Vendor's Advocates"** means Messrs. Abdullahi Yussuf & Company Advocates, Ralli House, 3rd Floor, Nyerere Avenue and P.O. Box 88356-80100 Mombasa;
- 1.1.27 **"Works"** means the works which are to be carried out on the Land in accordance with the terms of this Agreement and more particularly the Third Schedule to this Agreement.

1.2 **INTERPRETATION**

In this Agreement, unless the context otherwise requires, reference to: -

- 1.2.1 words importing the singular number only shall include the plural number also and vice versa and words importing the masculine gender include the feminine gender and neuter and vice versa;
- 1.2.2 clauses shall be construed as references to clauses of this Agreement;
- 1.2.3 any statute or any provision of any statute shall be deemed to refer to any statutory

- modification or re-enactment thereof and to any statutory instrument, order or regulation made there-under or under any such re-enactment;
- 1.2.4 indemnifying any person against any circumstance includes indemnifying and keeping them harmless from all actions, claims and proceedings from time to time made against that person and all loss or damage and all payments, costs and expenses made or incurred by that person as a consequence of or which could not have arisen but for that circumstance;
- 1.2.5 the expression “**person**” shall include any legal or natural person, partnership, trust company, joint venture agency, non-governmental organization, state corporation government or local authority department or other body;
- 1.2.6 the word “**tax**” shall be construed so as to include any tax levy import assessment duty or other charge of similar nature (including, without limitation, value added tax, stamp duty capital gains tax and any penalty or interest payable in connection with any failure to pay or delay in paying any of the same) and “taxation” shall be construed accordingly and the expression “competent taxing authority” means, in respect of any state or administrative division thereof, any governmental or local authority monetary agency or central bank having power to collect or levy taxes;
- 1.2.7 the “**Vendor**” includes the successors in title and assigns of the Vendor and the “Purchaser” includes the personal representatives and permitted assigns of the Purchaser;
- 1.2.8 costs, charges, expenses or remuneration shall be deemed to include, in addition, references to any value added tax or similar tax charged or chargeable in respect thereof; and
- 1.2.9 any reference to any document means that document as is supplemented, amended or varied from time to time between the parties thereto in accordance with the terms (if applicable) hereof and thereof.
- 1.3 Headings to clauses are for convenience only and shall not affect the construction or interpretation of this Agreement.
- 1.4 Reference to any document means that document as is supplement, amended or varied from time to time between the parties thereto in accordance with the terms (if applicable) thereof.
- 1.5 Any covenant by a party not to do an act or thing shall be deemed to include an obligation not to permit or suffer such act or thing to be done by another person so far as this is within its or his power or control.

2. AGREEMENT TO PURCHASE

- 2.1. The Vendor hereby agrees to sell and the Purchaser hereby agrees to purchase the Apartment at the Purchase Price upon the terms and conditions set out in this Agreement.
- 2.2. As a condition precedent, the Purchaser will be required to provide copies of the following documents on or before the execution of this Agreement: -
- 2.2.1.** National Identity Card and/or valid passport; and
 - 2.2.2.** KRA Pin Certificate.
- 2.3. The Purchaser understands that any nominee shall be subject to the prior approval of the Vendor and shall procure that such nominee complies with any vetting process and provides all supporting documents and information as may be determined by the Vendor from time to time in order to consider the nomination request.
- 2.4. The Purchaser further understands and acknowledges that an advance written notice stating the reasons for the nomination shall be issued upon the Vendor for consideration. The Purchaser shall not be entitled to delay or withhold any payment under this Agreement on the due date by reason of any intended or pending nomination request.

3. PAYMENT OF THE PURCHASE PRICE

- 3.1. The Purchase Price shall be paid by the Purchaser as follows: -

- 3.1.1. The Purchaser shall pay the Vendor a Deposit on or before execution of this agreement into the Vendor's account details indicated here below (receipt whereof the Vendor hereby acknowledges). In this regard the Parties hereby indemnify the firm of Abdullahi Yussuf & Company Advocates from any liability and or claim in respect of the said Deposit.

ACCOUNT NAME;	ULTRA MODERN HOMES LTD
BANK;	GULF AFRICAN BANK
ACCOUNT NUMBER;	0900487709
BRANCH;	MOMBASA BRANCH
BANK CODE;	0072

- 3.2. The Purchaser shall pay the balance of the purchase price in the sum of **Kenya Shillings Six Million (Kshs. 6,000,000/-)** (the "Balance") in **36** monthly installments of **Kshs. 166,666.67/-** each month starting from **1st December, 2025**.
- 3.3. Payment of the Purchase Price or any part thereof or any other sum payable by the Purchaser hereunder shall be made free and clear of and without any set-off, counterclaim, Taxes or deduction whatsoever. If as at the time of making the payments under this Clause 3 any applicable law regulation or regulatory requirement or any

competent taxing authority requires the Purchaser to make any deduction or withholding in respect of taxes from any payment due under this Agreement for the account of the Vendor the sum due from the Purchaser in respect of such payment shall be increased to the extent necessary to ensure that, after the making of such deduction or withholding, the Vendor receives a net sum equal to the sum which the Vendor would have received had no such deduction or withholding been required to be made and the Purchaser shall indemnify the Vendor against any losses or costs incurred by the Vendor by reason of any failure of the Purchaser to make any such deduction or withholding.

4. LATE PAYMENT

4.1. If the Purchaser is in breach of the Purchaser's payment obligations under Clauses 3 or any other clause requiring payment by the Purchaser in this Agreement or if the Vendor consents to payment by cheque or banker's draft and if the relevant cheque or bankers draft delivered for or towards the satisfaction of the Purchaser's relevant payment obligation is not honoured upon first presentation:

4.1.1 The Vendor may (but without prejudice to any other available remedy in favour of the Vendor) if payment in cleared funds shall not have been effected within five (5) days of the due date for payment elect to treat such non – payment as a fundamental breach by the Purchaser of the Purchaser's obligations under this agreement and the provisions of Clause 4.1.2 thereafter apply.

4.1.2 Save as may otherwise be provided herein, if the Purchaser does not pay any sum payable under Clause 3 or any other clause requiring payment by the Purchaser in this Agreement on its due date for payment, the Purchaser shall (without prejudice to the exercise by the Vendor of any other right or remedy in favour of the Vendor) pay to the Vendor Default Damages at the Default Damages rate of five percent (5%) per annum or at such rate or rates as may be determined by the Vendor from time to time in its sole discretion subject to the maximum permitted by law (hereinafter referred to as the "Default Damages Rate") on all monies due from the Purchaser with effect from the date of the same becoming due until actual repayment of such monies in full and the Purchaser hereby acknowledge and agrees that the Default Damages represents a reasonable pre-estimate of the loss to be suffered by the Vendor.

4.1.3 The Default Damages shall be applied by the Vendor to a charity fund constituted by the Vendor for purposes of such socially oriented welfare purposes as may be determined by the Vendor in its sole discretion. The Vendor shall disburse all amounts recovered from the Purchaser on account of Default Damages for charitable purposes.

4.1.4 The Vendor and the purchaser recognize that and agree that payment of interest is repugnant to the principles of the Islamic Sharia and accordingly to the extent that any legal system would (but for the provision of this clause) impose (whether by contract or statute) any obligation to pay interest, the Vendor and the Purchaser hereby irrevocably and unconditionally expressly waive and reject any entitlement to recover interest from each other.

4.1.5 The Vendor may (but without prejudice to any other available right or remedy) if payment (together with accrued Default Damage thereon) in cleared funds shall not have been effected on or before the due date for payment elect to treat such non-payment as a fundamental breach of the Purchaser's obligations under this Agreement and the provisions of Clause 10 shall apply.

5. CONSTRUCTION OF THE APARTMENT AND DEFECT LIABILITY PERIOD

5.1 The Vendor shall cause the Apartment to be constructed as per the drawings/Architectural plans submitted for approval to the Mombasa County Government copies of which shall be provided to the Purchaser, who shall confirm that she/he has examined the same prior to the execution of this Agreement.

5.2 In all matters relating to the construction and finishing of the Apartment the decision of the Vendor's Architects shall be final. Upon issuance of a Certificate of Occupation by the Mombasa County Government, the Vendor shall be deemed to have carried out its obligations in full with respect to the construction and finishing and the Purchaser' claim for defective works shall only be considered within six (6) months of the date of delivery of possession to the Purchaser.

6 SALE SUBJECT TO LSK CONDITIONS OF SALE

The sale is subject to the LSK Conditions of Sale (2015 Edition) in so far as they are not inconsistent with the conditions contained in this Agreement.

7 NO ENCUMBRANCES

The Apartment is sold subject to the Acts, Covenants, Conditions and Stipulations as more particularly set out in the document of title relating to the Apartment but otherwise free from any mortgage, charge, lien, encumbrances or adverse claims whatsoever.

8 COMPLETION

8.1 Completion shall take place at the Vendor's Advocates office.

8.2 On or before the Completion Date, the Purchaser shall remit the balance of the Purchase Price as set out under Clause 3 above into the Vendor's Bank Account and furnish the Vendor's Advocates with the remittance slip evidencing the same. The Purchaser shall further confirm settlement of the Vendor's Advocates legal fees together with the rest of the costs as provided by the 2nd Schedule (annexed hereto). Thereupon, the said Advocates shall procure registration of the Transfer in favour of the Purchaser's nominee named below and thereafter furnish the Purchaser's Advocates with the following documents in respect of the Apartment: -

8.2.1 Original Certificates of Lease in respect of the Apartment duly issued in the name of the Purchaser;

8.2.2 One (1) counterpart of the Transfer over the Apartment duly stamped and registered at the Lands Registry as appropriate;

8.2.3 Valuation Requisition Form in respect of the Apartment, duly approved by the Government Chief Valuer;

8.2.4 copy of the duly registered Sectional Plan;

8.2.5 copy of the Certificate of Occupation from the County Government of Mombasa;

8.2.6 copy of the Certificate of Practical Completion;

8.2.7 copy of the bylaws of the Corporation and/or proposed by laws of the Corporation (if any);

8.2.8 Copy of the management agreement or proposed management agreement, (if any); and

8.2.9 Copy of the recreational agreement or proposed recreational agreement, (if any).

The documents listed in Clauses 8.2.1 to 8.2.9 (both inclusive) are hereinafter collectively referred to as the **"Completion Documents"**).

9. POSSESSION AND MOVABLE

9.1 The Apartment is sold with vacant possession as at the Completion Date provided however that the Purchaser shall not be entitled to possession until the entire Purchase Price and all the sums mentioned in schedule 2 as annexed hereto have been paid in full and in cleared funds to the Vendor or the Vendor's Advocate as the case may be.

9.2 The sale does not include movables.

10 **DEFAULT**

10.1 If the Purchaser is in default of any payment or installment on its due date PROVIDED that the default continuous for a period of 30 days, or fails to comply with any of the conditions hereof or of the condition subject to which this sale is made including the condition relating to Completion, the Vendor shall give to the Purchaser Twenty One (21) days' notice (time being of the essence) in writing specifying the default and requiring the Purchaser to Complete and/or remedy the default before the expiration of such notice **AND** if the Purchaser shall fail to comply with such notice the Vendor shall be entitled to:-

10.1.1 rescind this Agreement, retain 10% of the Purchase Price and at least half of the total legal fee as provided under schedule 2, by effecting service of a rescission notice on the Purchaser and the Vendor shall thereafter be at liberty to resell the Apartment PROVIDED THAT the remaining balance of the Purchase Price due to the Purchaser (if any) shall be refunded to the Purchaser within thirty (30) days from the date the Apartment is sold to a third party; or

10.1.2 extend the time for Completion/remedying of default.

10.2 If the Vendor chooses to exercise the option provided under clause 10.1.2 above, the Purchaser shall pay Default Damages on the outstanding balance of the Purchase Price at a rate of 5% from the date of the same becoming due until actual repayment of such monies in full provided that if the Purchaser fails to Complete/remedy the default, then the Vendor shall be entitled to rescind this Agreement pursuant to clause 10.1 above.

10.3 If the Vendor fails to comply with his obligations under this Agreement and provided that the Purchaser is able ready and willing to complete, the Purchaser shall give to the Vendor Twenty-One (21) days' notice in writing to comply with its obligations and such notice shall specify the default and require the Vendor to make it good within the Twenty-One (21) days' notice and if the Vendor then fails to comply with the said notice, the Purchaser shall be entitled to: -

10.3.1 rescind this Agreement and thereafter the Vendor shall upon being issued with the Rescission Notice and within Thirty (30) days of resale of the Apartment refund to the Purchaser only the payment made on account of the Purchase Price without any set off or counterclaim thereafter the Purchaser shall not have any claim against the Vendor whether in tort or contract; or

10.3.2 extend time to allow for the Vendor's compliance.

11 TIME OF THE ESSENCE

Time shall be deemed to be of the essence in respect of the Purchaser's obligations under this Agreement.

12 CONDITION OF THE APARTMENT

- 12.1 The Purchaser having been afforded the opportunity of viewing and inspecting the Building Plans prior to the date of this Agreement, purchases the Apartment in the same condition as illustrated in the said plans and shall not require the Vendor to make any improvements whatsoever in any manner.
- 12.2 The Purchaser has entered into this Agreement solely as a result of its own survey and inspection as aforesaid and not in reliance upon the warranty representation or confirmation either written or oral or implied or made herein by or on behalf of the Vendor not contained in this Agreement.
- 12.3 The Purchaser has conducted a search against the title to the Land and has full knowledge of the terms and conditions pursuant to which the Vendor holds the title of the Land.

13 SERVICE CHARGE

- 13.1. The Purchaser shall, on or before the 5th day of every month, pay a monthly service charge of Kenyan Shillings Four Thousand Five Hundred (Kshs. 4,500) Only to the Corporation/Vendor (as shall be advised by the Vendor prior to the Completion Date), for the provision of various services within the apartment complex. The service charge shall cover costs associated with maintenance, security, water provision, and other communal services as determined by the Corporation.
- 13.2. In the event of non-payment or late payment of the monthly service charge, the Corporation/Vendor or their agents and authorized representatives reserves the right to withhold or suspend services, including but not limited to water provision and security services, until such time as the outstanding service charges are settled.
- 13.3. The service charge may be subject to periodic adjustments by the Corporation, considering changes in the costs associated with providing services and other relevant factors.

14 COSTS

- 14.1 The Purchaser shall upon execution of this Agreement pay at least half of the Vendor's Advocates' legal charges (non-refundable) in connection with this transaction while the rest of the legal fee amount together with other costs as

provided under Schedule 2 of this Agreement shall be payable by the Purchaser on or before the Completion Date.

14.2. All legal fees payments shall be made to Vendor's Advocates Account details below;

ACCOUNT NAME;	ABDULLAHI YUSSUF & COMPANY ADVOCATES
BANK;	PREMIER BANK
ACCOUNT NUMBER;	0017704803 (KSH)
BRANCH;	DIGO ROAD, MOMBASA
BANK CODE;	017
SWIFT CODE;	IFCBKENA
PAYBILL NO;	919700

15 **WORKS**

The Vendor shall procure the carrying out of the Works in accordance with the provisions of the third Schedule to this Agreement.

16 **OUTGOINGS**

All Outgoings in respect of the Apartment shall be apportioned between the Parties on the Completion Date hereof provided always that the Vendor shall be entitled to all income from the Apartment up to the Completion Date upon which all Outgoings and income shall accrue on the account of the Purchaser.

17 **NOTICE**

17.1 Any notice or communication under or in connection with this Agreement to be given to any Party to this Agreement shall be in writing and: -

17.1.1 may (in addition to any other effective mode of service) be sent by registered or recorded delivery post or electronic mail;

17.1.2 shall in the case of a notice or other communication to the Vendor be served on the Vendor's Advocates with a copy to the Vendor's address; and

17.1.3 shall in the case of a notice or other communication to the Purchaser be served on the Purchaser's Advocates with a copy to the Purchaser's address.

17.2 Save as otherwise expressly provided in this Agreement, any notice, demand or document to be given or made by one Party to this Agreement to the other shall be deemed made: -

17.2.1 when left during normal working hours on a Business Day at the principal office of either Party;

17.2.2 three (3) Business Days after posting by registered post provided that proof is given that the notice, demand or document was properly addressed adequately stamped and put into the post by registered post; or

17.2.3 one day (1) after time of transmission if sent via electronic mail to the authorized representative of the other Party.

18 SURVIVAL

Save with regard to matters which require to be fulfilled and are in fact fulfilled prior to or at the Completion Date, this Agreement shall continue to be in full force and effect.

19 WAIVER

No failure or delay by the Vendor in exercising any claim, remedy, right, power or privilege under this Agreement shall operate as a waiver nor shall any single or partial exercise of any claim, remedy, right, power or privilege preclude any further exercise thereof or the exercise of any other claim, right or power.

20 REMEDIES CUMULATIVE

Any remedy or right conferred upon the Vendor for breach of this Agreement including the right of rescission shall be in addition to and without prejudice to all other rights and remedies available to it under law.

21 AMENDMENT

No amendment to this Agreement shall be effective unless signed in the same manner as this Agreement.

22 INTENTION TO BE BOUND

22.1 Each Party hereby agrees and confirms for the purposes of the Law of Contract Act (Chapter 23, Laws of Kenya) that it has executed this Agreement with the intention of binding itself fully to the contents hereof.

22.2 No person who is not a party to this Agreement shall be made a party to this Agreement or shall have any right to rely on or enforce any term of this Agreement.

23 GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with Kenyan law and the parties submit to the exclusive jurisdiction of Kenyan courts.

24 FORCE MAJEURE

24.1 Neither the Vendor nor the Purchaser shall be liable in respect of any delay in performing, failure to perform any of its obligations (save for the obligations of the Purchaser to make payments under this Agreement) in consequence of any act, cause or event which (i) was not within the reasonable control of the affected Party, (ii) was not caused or precipitated by such Party's negligence, and (iii) could not have been prevented by the affected Party's reasonable diligence including without limitation: -

24.1.1 any act of God;

24.1.2 any war or hostilities (whether war be declared or not) invasion, armed conflict or act of foreign enemy, blockade, embargo, revolution, riot, insurrection, civil commotion, acts of terrorism or piracy, or sabotage;

24.1.3 any sabotage, riots or other act of civil disobedience, civil commotion, rebellion, act of a public enemy or invasions;

24.1.4 any actions or inactions of any Competent Authority;

24.1.5 any act of terror;

24.1.6 epidemics or plagues;

24.1.7 explosions or chemical contamination (other than resulting from an act of war);

24.1.8 labour disputes including strikes, works to rule or go-slows, industrial disputes or lockouts are widespread or nationwide;

24.1.9 any storms, floods or other inclement weather, earthquakes, subsidence, epidemics or other natural physical disasters;

24.1.10 the discovery of geological conditions, toxic contamination or archaeological remains on the Land and/or Property that could not reasonably have been expected to be discovered through an inspection; and

24.1.11 fire, accident, or explosion.

- 24.2 The Party affected by any of the circumstances referred to in this clause (the “**Force Majeure Event(s)**”) shall use all commercially reasonable endeavors to bring the Force Majeure Event to an end and shall promptly notify the other Party (the “Force Majeure Notice”) when such circumstances cause a delay in performance or failure in performance and when they cease to do so.
- 24.3 If such circumstances continue for more than twenty-four (24) months after the date of the Force Majeure Notice, either Party may terminate this Agreement by notice in writing to the other, either party may terminate the Agreement but without prejudice to any accrued rights either party may have against the other but subject to agreement, such affected party undertakes to continue with its performance of obligations under this Agreement immediately the Force Majeure event ceases. Any payment obligations arising during the subsistence of the Force Majeure event shall be deemed to be suspended.
- 24.4 The affected Party undertakes to continue with its performance of obligations under this Agreement immediately the Force Majeure Event ceases.

25 **DISPUTE RESOLUTION**

- 25.1 In the event of any dispute between the Parties relating to this Agreement, the Parties shall seek to initially resolve the dispute by good faith negotiations between them.
- 25.2 If the dispute has not been settled pursuant to the negotiations as contemplated in clause 24.1 (*Amicable Resolution*) within fourteen (14) days from the Dispute Date, such dispute shall be referred to and finally resolved by a Kenyan court of competent jurisdiction.

26 **ENTIRE AGREEMENT**

This Agreement contains the whole agreement and understanding between the Parties relating to the transaction provided for in this Agreement and supersedes all previous agreements (if any) whether written or oral between the Parties in respect of such matters.

FIRST SCHEDULE **MEMORANDUM**

1. Land Act (Number 6 of 2012).

2. Land Registration Act (Number 3 of 2012).
3. Sectional Properties Act, 2020.
4. The land Titles Act (Chapter 282) Excepting Part III thereof (repealed)
5. The Registration of Titles Act (Cap 281) (repealed)

THE APARTMENT

Means all that 2 Bedroom Apartment Number 4B on the 4TH Floor of a block of apartments known as **ULTRA BEACH RESIDENCE** measuring approximately **1100** square feet and one (1) parking space for the purposes of identification only edged in red on the plan annexed hereto and registered in the Registry of Documents at Mombasa aforesaid in Volume Folio File and includes: -

(For illustration purposes)

- (a) The residential Apartment;
- (b) The main structure ceilings and floors of the Apartment; and
- (c) The main structural walls of the Apartment.

And references to the Apartment in the absence of any provision to the contrary include any part of the Apartment.

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SECOND SCHEDULE

<u>LEGAL FEES, REGISTRATION COSTS AND DISBURSEMENTS</u>		
ITEM NO	PARTICULARS	KSHS.
1.	Valuation by the Government Chief Valuer, Registration of the transfers and Procuring Issuance of the Title document over the Apartment;	20,000/-
2.	Proportionate costs for registration of the sectional plan in respect of the Apartment and establishment of the Corporation;	55,000/-
4.	Transfer costs, Miscellaneous Disbursements, banking charges Commissioning and Attestation and stamping of the agreement;	20,000/-
5.	Legal Fees in respect of handling the transaction; (Exclusive of VAT)	80,000/-
6.	Stamp duty at 4% of the purchase price subject to approved by the Government valuer.	T.B.A

NB:

The registration costs and disbursements in this Schedule are estimates. Any changes or additional costs will be communicated by the Vendor to the Purchaser before proceeding further

THIRD SCHEDULE

PROVISIONS RELATING TO THE WORKS

1. Definition and Interpretation

In this schedule: -

- 1.1. Words and expressions defined in paragraph 1 of this agreement and in the other paragraphs of this schedule have the meanings specified.
- 1.2. **"Building Contract"** means the contract made between the Vendor and the Contractor.
- 1.3. **"Contractor"** means the person appointed by the Vendor to carry out the Works.
- 1.4. **"Finishes"** means the finishes as described in the documents available at the Vendor's site office for inspection.
- 1.5. Any reference to a paragraph or paragraphs is a reference to the relevant paragraph or paragraphs of this schedule.
- 1.6. Any reference to the **"Architect"** shall have the same meaning as in the Building Documents.

2. Approvals

- 2.1. **"Planning Permission"** means the detailed planning permission for the carrying out of the Works.
- 2.2. **"Approvals"** means (subject to paragraph 2.4) below the Planning Permission and all other approvals consents permissions and licenses of any local or other competent authority or approvals given by the Architect which may from time to time be necessary to enable the Vendor and/or the developer lawfully to commence and to carry out the Works and each and every stage or phase of the Works and (if the same are destroyed or damaged) to reinstate the Works and "Approval" shall be construed accordingly.
- 2.3. The Vendor shall: -

- 2.3.1. use all reasonable endeavors to obtain all Approvals which are from time to time necessary;
- 2.3.2. use all reasonable endeavors to procure that none of the Approvals is revoked and that all Approvals continue in full force and effect;
- 2.3.3. pay all fees costs and expenses of and incidental to the matters referred to in this paragraph.

3. **Materials**

- 3.1. If the Architect certifies that any of the materials referred to in the Building Documents or the Finishes are not or will not be procurable within a reasonable time then the Vendor may in carrying out the Works substitute for them such alternative materials as the Architect may in his certificate specify as being the material which (of those readily available) most closely resemble and of the quality of the materials referred to in the Building Documents or the Finishes at the contracted cost thereof.
- 3.2. Notwithstanding anything to the contrary contained or implied elsewhere in this agreement the Vendor undertakes that no material or substance not in accordance with good current building practice shall be used or incorporated in the Works.

4. **Variations**

- 4.1. "**Variation**" means any amendment to or departure from the Building Documents and the details of the Works contained in them (whether by way of alteration addition or omission).
- 4.2. "**Unacceptable Variation**" means any Variation which would substantially alter the design layout nature capacity or standard of construction of the Property as provided for in the Building Documents or prejudice the use of the Property.
- 4.3. "**Permitted Variation**" means: -
 - 4.3.1. any Variation which is not an Unacceptable Variation and which is required by any local or other competent authority either as a condition of the grant or continuance in force of any Approval or in consequence of any variation relaxation or waiver of any Approval;

- 4.3.2. any Variations to the interior of the Apartment suggested by the Purchaser provided that the changes do not affect the exterior of the apartment building and the changes are approved by the Architect in accordance with a set down procedure which will include the additional costs for such variation; and
- 4.3.3. any Variation made in accordance with paragraph 4.1 and 4.5 and any other Variation which is not an Unacceptable Variation and which is proposed by the Architect and "**Permitted Variations**" shall be construed accordingly.
- 4.4. References in this schedule to "Building Documents" shall be construed as referring to the Building Documents as from time to time varied by any Permitted Variations.
- 4.5. The Vendor may from time to time make variations to the design, layout or position of the Apartment and other apartments in the Estate due to the need to preserve existing trees provided any such variations shall not be an Unacceptable Variation.

5. **Carrying out of Works**

- 5.1. The Vendor shall obtain all necessary Approvals to enable it lawfully commence the Works. The Vendor shall at its own expense diligently carry out and complete the Works:
 - 5.1.1. in a good and workmanlike manner and with sound materials of their respective kinds;
 - 5.1.2. in accordance with the terms of all Approvals and otherwise in compliance with all Restrictions;
 - 5.1.3. in accordance with the Building Documents; and
 - 5.1.4. otherwise in accordance with the provisions of this schedule.
- 5.2. The Vendor shall:
 - 5.2.1. pay and indemnify the Purchaser against all fees charges and other payments whatever which may at any time be payable to any local or other competent authority in respect of the carrying out of the Works;

- 5.2.2. be answerable for and indemnify the Purchaser against all actions costs claims demands and liability whatever in relation to any failure by the Vendor to comply with its obligations under paragraph 5.1; and
- 5.2.3. be answerable for and indemnify the Purchaser against all actions costs claims demands and liability whatever in relation to any interference caused by the Works with any rights of light or air or other rights or easements whatever enjoyed over or in respect of the Site by the owners or occupiers of any property adjoining or in the neighborhood of the Site or by any statutory undertaker.

6. Time for Completion of Works

- 6.1. **"Delaying Factor"** means any circumstance beyond the control of the Vendor or its Contractor for the Works which the Vendor or its Contractor could not have prevented or avoided.
- 6.2. **"Estimated Completion Date"** The construction period is projected to take forty (40) months from the 1st May, 2025 to the 30th September, 2028. The Estimated Completion Date shall therefore be Twenty (21) one days from the date of issuance of the certificate of practical completion by the project Architect and a certificate of occupation issued by the County Government of Mombasa or such earlier or later date as may be permitted pursuant to the provisions of paragraph 6.5.
- 6.3. Subject to the provisions of paragraph 6.4 the Vendor shall use all reasonable endeavors to carry out the Works to such a stage as would entitle the Architect to issue a certificate in respect of all of the Works pursuant to the Building Contract not later than the Estimated Completion Date.
- 6.4. If on one or more occasions the carrying out of the Works is delayed and the delay is notified to the Vendor and to the Purchaser by the Architect as being in the Architect's opinion attributable to any Delaying Factor then on each such occasion the Vendor shall be allowed such extension of time for carrying out the Works as may be determined in accordance with paragraph 6.5 and the date by which the Vendor is required to carry out the Works as provided in paragraph 6.2 shall be postponed accordingly.

- 6.5. The period of such extension shall be such (if any) as shall be certified by the Architect as being reasonable having regard to the delay in question.

7. **Practical Completion**

- 7.1. "**Certificate**" means a certificate by and in the reasonable and proper opinion of the Architect to the effect that in the opinion of the Architect practical completion of the Works has been achieved (and "Practical Completion" shall for the purposes of this agreement have the same meaning as in the Building Contract).
- 7.2. "**Certificate of Practical Completion**" means the Certificate of that name issued by the Architect pursuant to the Building Contract.
- 7.3. "**Certificate Date**" means the date on which the Certificate is issued.
- 7.4. "**Plant**" means all plant machinery and equipment installed or to be installed in respect of the borehole to be sunk at the Site.
- 7.5. "**Maintenance Contracts**" means contracts with any third parties relating to the inspecting servicing repair or maintenance of any items of Plant.
- 7.6. "**Guarantees**" means written guarantees or warranties given or offered by the manufacturers, suppliers or installers of any items of Plant or other items or other items incorporated in the Works.
- 7.7. The Vendor shall procure the issue of a Certificate as soon as in the opinion of the Architect a Certificate may properly be issued.
- 7.8. The Vendor shall procure that not later than the Certificate Date: -
- 7.8.1. all items of Plant installed are in good working order and (where applicable) operate to the relevant design specification mentioned in the Building Documents;
- 7.8.2. all water electricity and drainage services to the Property as provided for in the Building Documents are fully operational; and
- 7.8.3. all water services are separately connected to the borehole electricity services connected to Kenya Power & Lighting Company mains and the drainage services connected to the septic or the conservancy tanks.

8. Defects Liability

- 8.1. **"Defects Liability Period"** means six (6) months from the date of issuance of the Certificate of Practical Completion.
- 8.2. **"Defect"** means any defect in the Works which is attributable to the Works having been carried out otherwise than in accordance with paragraph 5.1.1 - 5.1.3 of this schedule.
- 8.3. **"Relevant Defect"** means any Defect whose existence is notified in writing to the Vendor by the Architect before the expiry of the Defects Liability Period and "Relevant Defects" shall be construed accordingly.
- 8.4. The Vendor shall at its own expense: -
- 8.4.1. as soon as practicable after the Certificate Date carry out and complete in accordance with the provisions of this schedule any Works which the Architect may on issuing the Certificate of Practical Completion specify in writing as being still outstanding;
 - 8.4.2. on completion of the Works procure the removal from the Site of all rubbish and all building and other materials and equipment;
 - 8.4.3. remedy or cause to be remedied to the satisfaction of the Architect all Relevant Defects as soon as practicable after being notified of them; and
 - 8.4.4. procure that the Contractor makes good in accordance with the provisions of the Building Contract all defects shrinkage and other faults in the Works which are notified by the Architect to the Contractor in accordance with the relevant clause of the Building Contract.
- 8.5. If in the meantime the registration of the Transfer has been completed: -
- 8.5.1. the Purchaser shall afford to the Vendor or (as the case may be) to the Contractor access to the Property to enable the Vendor to comply with its obligations under paragraph 8.4 of this schedule.
 - 8.5.2. the Vendor shall procure that in the performance of its obligations under paragraph 8.4 of this schedule as little disturbance or inconvenience as is reasonably practicable is caused to any occupiers of the Property.

- 8.6. If on the Certificate Date the Vendor is holding any sum or sums by way of retention in accordance with the Building Contract against the making good by the Contractor at any time after the Certificate Date of any defects shrinkage or other faults in the Works the Vendor shall not release such sum or sums to the Contractor until any such defects have been made good or (as the case may be) the Vendor is otherwise obliged by the terms of the Building Contract to release the same to the Contractor.
- 8.7. Save as provided in paragraph 5.2.2 of this schedule and in this paragraph 8, the Vendor shall with effect from the Certificate Date be under no liability to the Purchaser under this schedule in respect of any failure by the Vendor for any reason to comply with its obligations under paragraphs 5.1.1, 5.1.2 and 5.1.3 of this Schedule.

IN WITNESS WHEREOF the Vendor and the Purchaser hereto have executed this Agreement the day and year first hereinbefore written.

SIGNED by the Director of the Vendor
ULTRA BEACH RESIDENCE LTD

In the presence of:

Signature: _____

Name of Director: Said Hassan Boboo

ADVOCATE'S CERTIFICATE

I, certify that the Director of the above-named Vendor SAID HASSAN BOBOO appeared before me on the ____ day of _____, 20..... and being known to me/identified byof..... acknowledged the above signature to be theirs and that they had freely and voluntarily executed this Deed and understood its contents.

.....
ADVOCATE

SIGNED by the Purchaser
NAZLEEN AHMED ABDALLA

Signature: _____

ID. Number: 33102237

ADVOCATE'S CERTIFICATE

I certify that I was present and saw **NAZLEEN AHMED ABDALLA** who appeared before me on.....20..... and being known to me acknowledged the above signature or mark to be his/hers/theirs and that he/she/they had freely and voluntarily executed this instrument and understood its contents.

.....
ADVOCATE



DRAWN BY:

ABDULLAHI YUSSUF & CO. ADVOCATES
RALLI HOUSE, 3RD FLOOR,
NYERERE AVENUE

MOMBASA

Email: info@aycadvocates.com